

not do so. Miller Decl., ¶¶ 2-4. Defendant argues “a lay person would have no knowledge of the procedural steps that were required of him....” Mot., 2:17-18. The Court disagrees.

A self-represented party "is to be treated like any other party and is entitled to the same, but no greater consideration than other litigants and attorneys." *Williams v. Pacific Mutual Life Ins. Co.* (1986) 186 Cal.App.3d 941, 944. Thus, as is the case with attorneys, self-represented litigants must follow correct rules of procedure. *Nwosu v. Uba* (2004) 122 Cal.App.4th 1229, 1246-1247.

In addition, Defendant was mailed a notice of non-sufficient funds on July 25, 2025, was separately served with a September 5, 2025 order striking the Answer due to non-payment of funds, and was separately served with a September 8, 2025 request for entry of default. Default was subsequently entered on September 8, 2025. This notwithstanding, Defendant did nothing to address the situation until engaging counsel at some unknown time who then filed a request for relief in March 2026. On this record, there has been no credible showing of excusable mistake, surprise, inadvertence or neglect.

In summary, the Court denies the motion to set aside the default and default judgment.

2. CU0002209 Julli Conde vs. City of Nevada, et al.

The motion of Defendant City of Nevada City (“City”) to compel responses to discovery, deem requests for admission admitted, and for monetary sanctions is withdrawn from calendar as moot in light of Plaintiff’s dismissal of the City on May 13, 2026.

3. CU0002477 Blanche Sherr vs. Cascade Living Group

Defendants’ Motion to Compel Arbitration

Defendants Cascade Living Group–Grass Valley, LLC’s and Cascade Living Group Management, LLC’s motion to compel arbitration and request to stay action is denied.

Legal Standard

California law strongly favors arbitration finding it a speedy and relatively inexpensive manner of dispute resolution. *OTO, L.L.C. v. Kho* (2019) 8 Cal.5th 111, 125; *Armendariz v. Foundation Health Psychcare Services, Inc.* (2000) 24 Cal.4th 83, 97. A party to an arbitration agreement may seek a court order compelling the parties to arbitrate a dispute covered by the agreement. Code Civ. Proc. § 1291.2. The court must grant the petition to compel arbitration unless it finds: the right to compel arbitration has been waived by the moving party; grounds exist for the revocation of the agreement; or litigation is pending that may render the arbitration unnecessary or create conflicting rulings on common issues. Code Civ. Proc. § 1281.2.

Private arbitration is a matter of agreement between the parties and is accordingly governed by contract law. *Platt Pacific, Inc. v. Andelson* (1993) 6 Cal.4th 307, 313. Under both federal and state law, a threshold question for any petition to compel arbitration is whether there exists an agreement to arbitrate. *Cruise v. Kroger Co.* (2015) 233 Cal.App.4th 390, 396. Once the party seeking arbitration has met its burden proving the existence of a valid arbitration agreement, the